

26CMCV00913 26CMCV00913

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-14

Motion: DEFENDANT K1 SPEED INC.'S: (1) DEMURRER; AND (2) MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT DATE: September 14, 2026 TIME: 8:30 A.M.

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Case Number: 26CMCV00913 Hearing Date: September 14, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

DEREK HOWELL, an
individual,

vs.

K1 SPEED, INC., and DOES
1-50,

Defendants.

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CASE

NO: 26CMCV00913

[TENTATIVE] ORDER RE: DEFENDANT K1 SPEED

INC.'S: (1) DEMURRER; AND (2) MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST
AMENDED COMPLAINT

DATE: September 14, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

K1 Speed, Inc.

Responding Party: Plaintiff

Derek Howell

Notice: Ok

Tentative Ruling: Defendant's

Demurrer is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

Defendant's

Motion to Strike is DENIED AS MOOT.

I.

BACKGROUND

This is an action for negligence and negligent infliction of emotional distress. Plaintiff Derek Howell alleges that, on May 19, 2024, he witnessed his daughter Iyanna Howell collide with a go-kart causing multiple injuries. Plaintiff alleges that the collision was caused by Defendant K1 Speed, Inc.'s ("K1") understaffing and a lack of proper and substantial supervision of its premises. As a result of witnessing the accident, Plaintiff alleges that he immediately panicked and became scared and lost control, which resulted in him being charged with a crime, being required to pay restitution and losing sole custody of his daughter.

On May 18, 2026, Plaintiff filed his initial complaint, naming both himself and his daughter Iyanna Howell as Plaintiffs, against Defendants K1 and Does 1 to 50, inclusive, stating causes of action for: (1) Gross Negligence; and (2) Premises Liability.

On May 20, 2026, the Court denied Plaintiff's Application for Appointment of Guardian ad Litem. (See Minute Order, 5/20/26.)

On June 18, 2026, Plaintiff filed his operative First Amended Complaint (the "FAC") against K1 and Does 1 to 50, omitting Iyanna Howell as a Plaintiff and stating causes of action for: (1) Negligence; and (2) Negligent Infliction of Emotional Distress.

On July 20, 2026, K1 filed the instant: (1) Demurrer; and (2) Motion to Strike Portions of Plaintiff's FAC.

On August 19, 2026, Plaintiff filed an Opposition to K1's Demurrer.

On August 20, 2026, K1 filed its Reply.

II.

ANALYSIS

A.

Legal

Standard

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although

courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

B.

Meet and

Confer

Prior to filing a demurrer, the moving party “shall meet and confer in person, by telephone or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

Counsel for K1, James A. D'Ambrosio. ("D'Ambrosio") attaches a declaration in support of K1's Demurrer attesting to sending a meet and confer letter detailing the legal deficiencies in the FAC to Plaintiff on June 11, 2026. (D'Ambrosio Decl., ¶ 3, Exh. A.)

D'Ambrosio attests that certain issues were decided but that the parties were unable to come to an agreement as to other issues, resulting in the FAC being filed with previously identified issues. (See Id., ¶ 4, Exh. B.) On June 29, 2026, D'Ambrosio sent a second meet and confer letter to Plaintiff regarding the FAC, again detailing the claimed deficiencies in the pleading. (Id., ¶ 6, Exh. C.) Although Plaintiff spoke directly with a person from D'Ambrosio's office regarding K1's Demurrer, the parties were unable to come to a resolution. (Id., ¶ 7.)

The Court finds that K1 has satisfied the statutory meet and confer requirement.

C.

Request for
Judicial Notice

The Court may take judicial notice of "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States." (Evid. Code § 452(d).)

In conjunction with its Demurrer, K1 requests the Court take judicial notice of Plaintiff's FAC. Although permitted, K1's request for judicial notice of the operative FAC in this matter is unnecessary. In deciding K1's Demurrer and Motion to Strike, the Court must necessarily notice and evaluate the operative pleading. (See *Courtesy Ambulance Serv. v. Superior Court* (1992) 8 Cal.App.4th 1504, 1519 (In ruling on a demurrer, the Court must interpret the complaint reasonably, reading it as a whole and considering all parts in their context); see also Code Civ. Proc. § 437(a)(Grounds for a motion to strike must appear on the face of the challenged pleading or from matters subject to judicial notice).)

Because the Court will necessarily examine Plaintiff's operative FAC in conjunction with both K1's Demurrer and Motion to Strike, K1's request for judicial notice – though unnecessary - is GRANTED.

D.

Discussion

1.

Demurrer

K1 demurs to Plaintiff's FAC on the grounds that the asserted causes of action each fail to state facts sufficient to constitute a cause of action. Plaintiff opposes, asserting that he has stated sufficient facts to constitute each alleged cause of action.

i.

First Cause of Action for Negligence

K1 first argues that Plaintiff's allegations defeat his claim of negligence because he affirmatively pleads "gross negligence" and disclaims "ordinary negligence" but fails to plead facts sufficient to meet a gross negligence standard. In opposition, Plaintiff apparently relies upon a "Customer Accident/Injury Report" not included as part of the FAC.

K1 argues that, in specifically pleading that Defendant's alleged conduct was "not ordinary negligence" and instead labeling the conduct "gross negligence," Plaintiff has "expressly eliminated ordinary negligence from the Court's consideration" because "a plaintiff is bound by the specific allegations and limitations they deliberately place in their complaint." (Mot., p. 5:1-9.) Given Plaintiff's allegations and citing *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747 ("Santa Barbara") for the proposition that gross negligence requires "proving a want of even scant care or an extreme departure from the ordinary standard of conduct," K1 argues that Plaintiff's First Cause of Action is subject to demurrer because the alleged conduct fails to meet the heightened standard applied to gross negligence. (Mot., p. 5:9-11(quoting *Santa Barbara*, supra, 41 Cal.4th at p. 754 (quotations omitted).))

The Court does not find K1's argument persuasive. K1 is correct in its assertion that a plaintiff is bound by the allegations of a complaint and where the complaint contains allegations of fact which defeat a cause of action a demurrer must be sustained. (See *Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877.) However, the key words there are "allegations of fact," because the

Court does not accept the truth of conclusions of law or contentions when ruling upon a demurrer. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) And, even though the Court has granted K1's request for judicial notice of the FAC, taking judicial notice does not convert Plaintiff's legal contention into a judicial admission or an immutable fact. (See, e.g., Oh v. Teachers Inc. & Annuity Ass'n of Am. (2020) 53 Cal.App.5th 71, 80-81 (Court may not take judicial notice of allegations in declaration and affidavits because those matters are reasonably subject to dispute and require formal proof. Plaintiff's legal contentions in the FAC are likewise (and obviously) subject to dispute and require formal proof).) In short, Plaintiff's allegation that K1's alleged actions constitute gross negligence is a legal conclusion and does not preclude Plaintiff's FAC – as K1 has rightfully noted – from withstanding demurrer because California does not recognize an independent tort of “gross negligence” and therefore “a plaintiff who alleges gross negligence but falls short of that heightened standard might still survive a demurer if the facts satisfy the lesser elements of ordinary negligence.” (See Mot., p. 4:24-28 (citing Santa Barbara, supra, 41 Cal.4th at p. 754).)

In accordance with the above, the Court proceeds with its analysis. The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and proximate cause resulting in injury. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917–918.) K1 contends that Plaintiff's First Cause of Action fails because Plaintiff specifically alleges (and thus judicially admits) that its staff “arrived within seconds” of the complained of accident. (Mot., p. 5:12-14.) K1 contends that responding within second is “the definition of prompt, reasonable care.” (Id., p. 5:14.)

K1's argument misconstrues or misreads Plaintiff's allegations. Reading the FAC in context and as a whole, Plaintiff is not alleging negligence because of the time it took for K1's staff to arrive after the accident; Plaintiff instead contends that the fact that the staff wasn't there already amounts to negligence. (See FAC, p. 4 of 5 (“The understaffing and lack of proper substance[al] supervision at the time of the incident is gross negligence”).)

K1 does not demur to Plaintiff's First Cause of Action on any other ground. Accordingly, K1's Demurrer to Plaintiff's

First Cause of Action is OVERRULED.[1]

ii.

Second Cause of Action for Negligent

Infliction of Emotional Distress

(a)

Failure to Plead an Underlying Tort

Citing Thing v. La Chusa

(1989) 48 Cal.3d 644 ("Thing") for the proposition that negligent infliction of emotional distress is not an independent tort but rather requires an underlying breach of a duty of care that causes injury, K1 demurs to Plaintiff's Second Cause of Action arguing that because Plaintiff's First Cause of Action fails, there is no underlying independent tort and therefore Plaintiff's Second Cause of Action is subject to demurrer.

The Court has overruled K1's

Demurrer to Plaintiff's First Cause of Action.

Accordingly, the Court finds that Plaintiff has successfully pleaded an underlying tort and K1's Demurrer to Plaintiff's Second Cause of Action on this ground is OVERRULED.

(b)

Thing v. La Chusa

"[A] plaintiff may recover damages

for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim; (3) as a result suffers serious emotional distress[.]" (Thing, supra, 48 Cal.3d at pp. 667-668.)

K1 argues that "[w]itnessing a collision

and claiming it caused one to 'panic' does not satisfy the second prong" set forth in Thing because "Plaintiff has failed to plead any facts demonstrating that he was specifically aware that Defendant's specific alleged negligence (understaffing) was causing the injury at the exact moment of the collision." (Mot., p. 6:1-4.)

That Plaintiff has not alleged that he knew it was K1's alleged understaffing which caused the collision at the time of the incident is inapposite. As is explained by the Thing Court, "[t]he elements which justify and simultaneously limit an award of damages for emotional distress caused by awareness of the negligent infliction of injury to a close relative are those noted in *Ochoa* -- the traumatic emotional effect on the plaintiff who contemporaneously observes both the event or conduct that causes serious injury to a close relative and the injury itself. (*Thing*, supra, 48 Cal.3d at p. 667 (some emphasis added).)

The Thing Court's formulation of its ultimate standard -- that a person seeking to recover "is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim" requires only awareness that "it" (being the injury-producing event) is causing injury to the victim. There is no requirement that a person seeking to recover for negligent infliction of emotional distress be aware that of any alleged negligence giving rise to "it."

In sum, Plaintiff need not have been aware of the actual alleged understaffing; Plaintiff sufficiently alleges that he witnessed the collision and witnessed his daughter being injured by the collision.

K1 references failure to plead "the strict prongs" of *Thing*, but only provides substantive argument as to the above-discussed knowledge of negligence. Accordingly, the Court does not address any other alleged failures because, without substantive argument, K1's arguments are waived. (See *Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc.* (2021) 59 Cal.App.5th 995, 1009 ("[F]ailure to offer reasoned analysis of [an] issue constitutes a waiver").)

K1's Demurrer on this ground is
OVERRULED.

(c)
Damages

K1 argues that Plaintiff "improperly attempts to recover damages stemming from his own subsequent criminal arrest, payment of restitution, and loss of child custody, noting his distress stems from his own 'actions or reactions' to the initial incident." (Mot., p. 6:6-8.) K1 argues that it is not liable for damages resulting from Plaintiff's own subsequent

criminal acts, which acts constitute independent, intervening and superseding causes breaking the chain of proximate causation.

The Court finds K1's arguments persuasive. K1 is correct in its assertion that, absent extenuating circumstances not present here, a defendant is not liable for a plaintiff's own subsequent criminal acts. (See *Brewer v. Teano* (1995) 40 Cal.App.4th 1024 ("Brewer"); see also Civ. Code § 3517 ("No one can take advantage of their own wrong").) As was noted by the Brewer Court, "[i]n many cases, the issue whether an intervening force is superseding or not is a question of fact for the jury to decide. But, like proximate cause generally, it is a matter of law where only one reasonable conclusion may be reached." (Brewer, supra, 40 Cal.App.4th at p. 1035.) This is one such instance.

Plaintiff pleads in his FAC "I was scared and lost control" and "[t]his ordeal causing my actions or reactions of Negligence [sic] Infliction of Emotional Distress I have missed several days of work trying to cope and handle the matter . . . I was charged with a crime, required to pay restitution, and lost sole custody of my daughter." (FAC, p. 4 of 4.) Read as a whole, the only reasonable conclusion given the allegations of the FAC is that Plaintiff is attempting to recover damages at least in part for things resulting from his own criminal conduct, something he cannot do.

Because the above discussion re: damages resonates throughout the entire Complaint, the Court SUSTAINS K1's Demurrer on the ground of failure to properly allege damages as to the entire FAC, WITH LEAVE TO AMEND.

2.

Motion to Strike

K1 moves to strike: (1) Plaintiff's specific monetary damage amount of \$75,000; (2) Plaintiff's request for punitive damages; and (3) Plaintiff's claim for damages regarding criminal restitution and child custody arguing that each is either unrecoverable, unsupported by law or claimed in contravention to applicable law.

Because the Court has sustained K1's

Demurrer to Plaintiff's FAC with leave to amend, the Court DENIED K1's Motion to Strike as moot.

III.

CONCLUSION

K1's

Demurrer to Plaintiff's FAC is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND. Plaintiff's Second Amended Complaint is ordered

to be filed and served no later than October 16, 2026.

K1's

Motion to Strike Portions of Plaintiff's First Amended Complaint is DENIED AS MOOT.

The Case

Management Conference is CONTINUED to December 18, 2026 at 8:30 a.m. in Dept.

E.

[1] But see the Court's discussion re:

damages in Section II, D, 1, ii, (c).